

## II

Both petitioner and respondents acknowledge the existence of a common-law right of access to judicial records, but they differ sharply over its scope and the circumstances warranting restrictions of it. An infrequent subject of litigation, its contours have not been delineated with any precision. Indeed, no case directly in point—that is, addressing the applicability of the common-law right to exhibits subpoenaed from third parties—has been cited or discovered.

## A

It is clear that the courts of this country recognize a general right to inspect and copy public records and documents,<sup>7</sup> including judicial records and documents.<sup>8</sup> In contrast to the English practice, see, *e. g.*, *Browne v. Cumming*, 10 B. & C. 70, 109 Eng. Rep. 377 (K. B. 1829), American decisions generally do not condition enforcement of this right on a proprietary interest in the document or upon a need for it as evidence in a lawsuit. The interest necessary to support the issuance

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<sup>7</sup> See, *e. g.*, *McCoy v. Providence Journal Co.*, 190 F. 2d 760, 765–766 (CA1), cert. denied, 342 U. S. 894 (1951); *Fayette County v. Martin*, 279 Ky. 387, 395–396, 130 S. W. 2d 838, 843 (1939); *Nowack v. Auditor General*, 243 Mich. 200, 203–205, 219 N. W. 749, 750 (1928); *In re Egan*, 205 N. Y. 147, 154–155, 98 N. E. 467, 469 (1912); *State ex rel. Nevada Title Guaranty & Trust Co. v. Grimes*, 29 Nev. 50, 82–86, 84 P. 1061, 1072–1074 (1906); *Brewer v. Watson*, 71 Ala. 299, 303–306 (1882); *People ex rel. Gibson v. Peller*, 34 Ill. App. 2d 372, 374–375, 181 N. E. 2d 376, 378 (1962). In many jurisdictions this right has been recognized or expanded by statute. See, *e. g.*, Ill. Rev. Stat., ch. 116, § 43.7 (1975).

<sup>8</sup> See, *e. g.*, *Sloan Filter Co. v. El Paso Reduction Co.*, 117 F. 504 (CC Colo. 1902); *In re Sackett*, 30 C. C. P. A. 1214 (Pat.), 136 F. 2d 248 (1943); *C. v. C.*, 320 A. 2d 717, 724–727 (Del. 1974); *State ex rel. Williston Herald, Inc. v. O'Connell*, 151 N. W. 2d 758, 762–763 (N. D. 1967). See also *Ex parte Uppercu*, 239 U. S. 435 (1915). This common-law right has been recognized in the courts of the District of Columbia since at least 1894. *Ex parte Drawbaugh*, 2 App. D. C. 404 (1894). See also *United States v. Burka*, 289 A. 2d 376 (D. C. App. 1972).